



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

AUG 9 2002

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 11179
(FIFTH REVISION)

EXPIRATION DATE: July 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Jones-Hamilton Co.
Newark, CA
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of UN 1H1 plastic drums containing sulfuric acid residue which are fitted with a pressure/vacuum relief vent. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24(g), 173.29(a), except as specified herein.
5. BASIS: This exemption is based on the application of Jones-Hamilton Company dated July 20, 2001, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identi- fication number	Packing Group
Sulfuric Acid	8	UN1830	II

7. SAFETY CONTROL MEASURES: This exemption authorizes the use of a pressure/vacuum relief vent, that is threaded into the 3/4 inch closure, on the top head of empty plastic drums meeting UN 1H1, containing sulfuric acid residue.
8. SPECIAL PROVISIONS:
 - a. This exemption authorizes certain plastic drums, equipped with pressure/vacuum relief vents containing sulfuric acid residue to be transported from Pocatello, Idaho, or from Colorado Springs, Colorado, to Newark, California.
 - b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous materials transportation law 49 U.S.C. § 5101 et seq.:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents (other than as permitted by this exemption) or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

Ann Mazzullo

Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

AUG 9 2002

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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